

harassed by a vicious suit for acting according to their consciences (the danger of which might easily be insinuated where powerful men are warmly engaged in a cause and thoroughly prepossessed of the justice of the side which they espouse).’” *Id.*, at 403, quoting 1 W. Hawkins, *Pleas of the Crown* 349 (6th ed. 1787). The court then reasoned that “[t]he public prosecutor, in deciding whether a particular prosecution shall be instituted or followed up, performs much the same function as a grand jury.” 12 F. 2d, at 404, quoting *Smith v. Parman*, 101 Kan. 115, 116, 165 P. 663 (1917). The court held the prosecutor in that case immune from suit for malicious prosecution and this Court, citing *Bradley v. Fisher*, *supra*, affirmed.

We recently reaffirmed the holding of *Yaselli v. Goff* in *Imbler v. Pachtman*, *supra*, a suit against a state prosecutor under § 1983. The Court’s examination of the leading precedents led to the conclusion that “[t]he common-law immunity of a prosecutor is based upon the same considerations that underlie the common-law immunities of judges and grand jurors acting within the scope of their duties.” 424 U. S., at 422–423. The prosecutor’s role in the criminal justice system was likely to provoke “with some frequency” retaliatory suits by angry defendants. *Id.*, at 425. A qualified immunity might have an adverse effect on the functioning of the criminal justice system, not only by discouraging the initiation of prosecutions, see *id.*, at 426 n. 24, but also by affecting the prosecutor’s conduct of the trial.

“Attaining the system’s goal of accurately determining guilt or innocence requires that both the prosecution and the defense have wide discretion in the conduct of the trial and the presentation of evidence. . . . If prosecutors were hampered in exercising their judgment as to the use of . . . witnesses by concern about resulting personal liability, the triers of fact in criminal cases often would be denied relevant evidence.” *Id.*, at 426.